

# SENATE . . . . . No. 1297

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Sal N. DiDomenico***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act clarifying the prevailing wage act to protect actions by the attorney general.

PETITION OF:

NAME:

*Sal N. DiDomenico*

DISTRICT/ADDRESS:

*Middlesex and Suffolk*

# SENATE . . . . . No. 1297

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By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 1297) of Sal N. DiDomenico for legislation to clarify the prevailing wage act to protect actions by the attorney general. Labor and Workforce Development.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 1161 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act clarifying the prevailing wage act to protect actions by the attorney general.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 27 of Chapter 149 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended striking the fourth paragraph, and replacing it thereof with  
3   the following:-

4           "An employee claiming to be aggrieved by a violation of this section may, 90 days after  
5   the filing of a complaint with the attorney general, or sooner if the attorney general assents in  
6   writing, and within 3 years after the violation, institute and prosecute in his own name and on his  
7   own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for  
8   any damages incurred, and for any lost wages and other benefits; provided, however, that the 3  
9   year limitation period shall be tolled from the date that the employee or a similarly situated  
10   employee files a complaint with the attorney general alleging a violation of any of these sections

11 until the date that the attorney general issues a letter authorizing a private right of action or the  
12 date that an enforcement action by the attorney general becomes final. An employee so  
13 aggrieved who prevails in such an action shall be awarded treble damages, as liquidated  
14 damages, for any lost wages and other benefits and shall also be awarded the costs of the  
15 litigation and reasonable attorneys' fees."

16 SECTION 2. Section 27F of Chapter 149 of the General Laws, as appearing in the 2022  
17 Official Edition, is hereby amended striking the third paragraph, and replacing it thereof with the  
18 following:-

19 "An employee claiming to be aggrieved by a violation of this section may, 90 days after  
20 the filing of a complaint with the attorney general, or sooner if the attorney general assents in  
21 writing, and within 3 years after the violation, institute and prosecute in his own name and on his  
22 own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for  
23 any damages incurred, and for any lost wages and other benefits; provided, however, that the 3  
24 year limitation period shall be tolled from the date that the employee or a similarly situated  
25 employee files a complaint with the attorney general alleging a violation of any of these sections  
26 until the date that the attorney general issues a letter authorizing a private right of action or the  
27 date that an enforcement action by the attorney general becomes final. An employee so  
28 aggrieved who prevails in such an action shall be awarded treble damages, as liquidated  
29 damages, for any lost wages and other benefits and shall also be awarded the costs of the  
30 litigation and reasonable attorneys' fees."

SECTION 2. Section 27G of Chapter 149 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended striking the second paragraph, and replacing it thereof with the following:-

"An employee claiming to be aggrieved by a violation of this section may, 90 days after the filing of a complaint with the attorney general, or sooner if the attorney general assents in writing, and within 3 years after the violation, institute and prosecute in his own name and on his own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for any damages incurred, and for any lost wages and other benefits; provided, however, that the 3 year limitation period shall be tolled from the date that the employee or a similarly situated employee files a complaint with the attorney general alleging a violation of any of these sections until the date that the attorney general issues a letter authorizing a private right of action or the date that an enforcement action by the attorney general becomes final. An employee so aggrieved who prevails in such an action shall be awarded treble damages, as liquidated damages, for any lost wages and other benefits and shall also be awarded the costs of the litigation and reasonable attorneys' fees."

SECTION 3. Section 27H of Chapter 149 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended striking the second paragraph, and replacing it thereof with the following:-

"An employee claiming to be aggrieved by a violation of this section may, 90 days after the filing of a complaint with the attorney general, or sooner if the attorney general assents in writing, and within 3 years after the violation, institute and prosecute in his own name and on his own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for

any damages incurred, and for any lost wages and other benefits; provided, however, that the 3  
year limitation period shall be tolled from the date that the employee or a similarly situated  
employee files a complaint with the attorney general alleging a violation of any of these sections  
until the date that the attorney general issues a letter authorizing a private right of action or the  
date that an enforcement action by the attorney general becomes final. An employee so  
aggrieved who prevails in such an action shall be awarded treble damages, as liquidated  
damages, for any lost wages and other benefits and shall also be awarded the costs of the  
litigation and reasonable attorneys' fees."

SECTION 4. Section 27 of Chapter 149 of the General Laws, as appearing in the 2022  
Official Edition, is hereby amended striking the word "27B" and replacing it thereof with the  
following:- "27H".